



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

APR 22 1991

DOT-E 10557
(FIRST REVISION)

1. Union Pacific Railroad Company, Omaha, Nebraska is hereby granted an emergency exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of a flammable solid for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes a one-time shipment of Phosphorous in a DOT Specification 111A100W1 tank car tank with a damaged coupler restraint system and puncture damage to the "B" end head, resulting from a derailment and provides no relief from any regulations other than as specifically stated.

2. BASIS. This emergency exemption is based on Union Pacific Railroad Company's application of February 27, 1991 and March 8, 1991, submitted in accordance with 49 CFR 107.113, and a determination that is necessary for protection of life.

3. HAZARDOUS MATERIALS (Descriptor and class). Phosphorus, yellow, in water, classed as a flammable solid.

4. PROPER SHIPPING NAME (49 CFR 172.101). Phosphorus, yellow, in water.

5. REGULATION AFFECTED. 49 CFR 173.31(a), 173.31(a) (5) and 173.190.

6. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

7. SAFETY CONTROL MEASURES.

a. Packaging prescribed is a DOT Specification 111A100W1 tank car tank meeting all DOT requirements (49 CFR Parts 100-299), except for the coupler restraint system and a non-specification closure over the puncture area, which sustained damage in a derailment.

b. Tank cars, GATX 14948 and UTLX 67609, has been loaded onto a flat car and will move in a special train, traveling at a reduced speed. The tank cars must be secured with appropriate blocking and bracing to prevent movement relative to the flat car. The movement will be made between Wooldridge, Missouri and FMC's facility in Lawrence, Kansas, a distance of approximately 160 miles for unloading and then final destination to Rhone Poulenc, Silver Bow, Montana. The shipment will be accompanied by personnel knowledgeable in emergency response procedures.

8. SPECIAL PROVISIONS.

a. Tank cars must be marked "DOT-E 10557" in four inch letters on a contrasting background above the DOT specification number.

b. The Federal Railroad Administration (FRA) is to be notified if any unusual incident, such as a derailment or exterior tank damage, occurs during the movement by contacting the:

Federal Railroad Administration
Office of Safety, RRS-12
400 Seventh Street S.W.
Washington D.C. 20590
(202) 366-9178 or 366-0549

9. REPORTING REQUIREMENTS: Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. April 30, 1991.

Issued at Washington, D.C.

ADD 2 2 1991

Alan I. Roberts
801/ Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FRA.